

Pennsylvania Act 194 of 2004 · effective January 29, 2005 · valid two years from execution unless you are incapable when it would expire (then it remains in effect until capacity returns).

COMBINED MENTAL HEALTH CARE DECLARATION AND POWER OF ATTORNEY FORM

Part I. Introduction

I, Margaret Eleanor Whitfield, having capacity to make mental health decisions, willfully and voluntarily make this Declaration and Power of Attorney regarding my mental health care. I understand that mental health care includes any care, treatment, service or procedure to maintain, diagnose, treat or provide for mental health, including any medication program and therapeutic treatment. Electroconvulsive therapy may be administered only if I have specifically consented to it in this document. I will be the subject of laboratory trials or research only if specifically provided for in this document. Mental health care does not include psychosurgery or termination of parental rights. I understand that my incapacity will be determined by examination by a psychiatrist and one of the following: another psychiatrist, psychologist, family physician, attending physician or mental health treatment professional. Whenever possible, one of the decision makers will be one of my treating professionals.

Primary Care Doctor

Dr. Anita Rao · (717) 555-0120

A. When this Combined Mental Health Declaration and Power of Attorney becomes effective

This Combined Mental Health Declaration and Power of Attorney becomes effective at the following designated time:

☐ When I am deemed incapable of making mental health care decisions. I would prefer the following doctor(s) to evaluate me for my ability to make mental health decisions:

☒ When the following condition is met:

Condition

This directive becomes effective when I am unable to make mental health treatment decisions as determined by qualified professionals. Relevant conditions: This directive becomes effective when, only when, my attending physician, one other qualified professional (a second physician or a licensed psychologist) examine me, determine in writing that I am incapable of making my own mental health care decisions. (Requires two professionals to agree I lack capacity)..

B. Revocation and Amendments

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This Combined Mental Health Care Declaration and Power of Attorney may be revoked in whole or in part at any time, either orally or in writing, as long as I have not been found to be incapable of making mental health decisions. My revocation will be effective upon communication to my attending physician or other mental health care provider, either by me or a witness to my revocation, of the intent to revoke. If I choose to revoke a particular instruction contained in this Power of Attorney in the manner specified, I understand that the other instructions contained in this Power of Attorney will remain effective until:

- (1) I revoke this Power of Attorney in its entirety;
- (2) I make a new combined Mental Health Care Declaration and Power of Attorney; or
- (3) Two years from the date this document was executed.

I may make changes to this Advance Directive at any time, as long as I have capacity to make mental health care decisions. Any changes will be made in writing and be signed and witnessed by two individuals in the same way as the original document. Any changes will be effective as soon the changes are communicated to my attending physician or other mental health care provider, either by me, my agent, or a witness to my amendments.

C. Termination

I understand that this Declaration will automatically terminate two years from the date of execution, unless I am deemed incapable of making mental health care decisions at the time that this Declaration would expire.

Part II. Mental Health Declaration

A. Treatment preferences

1. Choice of treatment facility.

- ☒ I have a preference for a treatment facility.
- ☒ I have a facility I wish to avoid.
- ☐ I have no preference regarding treatment facility.

In the event that I require commitment to a psychiatric treatment facility, I would prefer to be admitted to the following facility:

Name

Pennsylvania Psychiatric Institute, Harrisburg

In the event that I require commitment to a psychiatric treatment facility, I do not wish to be committed to the following facility:

Name

Riverside Behavioral (negative past experience)

I understand that my physician may have to place me in a facility that is not my preference.

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2. Preferences regarding medications for psychiatric treatment

- ☐ I consent to the medications that my treating physician recommends.
- ☒ I consent to the medications that my treating physician recommends with the following exceptions, limitations, and/or preferences:

Exceptions:

Medication	Reason
Haloperidol (Haldol)	caused severe dystonia (muscle locking) in 2019.
Lithium carbonate (Oral Pill)	caused severe tremors, confusion (moderate adverse reaction).

I prefer the following medications:

Medication	Reason
Lamotrigine (Lamictal)	200 mg daily — has stabilized my mood well for years.
Quetiapine (Seroquel)	50 mg at night — helps me sleep during episodes.

The exception, limitation, or preference, applies to generic, brand name and trade name equivalents unless otherwise stated. I understand that dosage instructions are not binding on my physician.

Note: Narrow therapeutic index (NTI) drugs (e.g., lithium, carbamazepine, valproic acid) cannot have generics substituted under PA law (35 P.S. §960.3).

- ☐ I have designated an agent under the Power of Attorney portion of this document to make decisions related to medication.
- ☐ I do not consent to the use of any medications.

3. Preferences for electroconvulsive therapy (ECT)

- ☐ I consent to the administration of electroconvulsive therapy.
- ☐ I have designated an agent under the Power of Attorney portion of this document to make decisions related to electroconvulsive therapy.
- ☒ I do not consent to the administration of electroconvulsive therapy.

4. Preferences for experimental studies

- ☐ I consent to participation in experimental studies if my treating physician believes that the potential benefits to me outweigh the possible risks to me.
- ☐ I have designated an agent under the Power of Attorney portion of this document to make decisions related to experimental studies.
- ☒ I do not consent to participation in experimental studies.

5. Preferences for drug trials

- ☐ I consent to participation in drug trials if my treating physician believes that the potential benefits to me outweigh the possible risks to me.

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☐ I have designated an agent under the Power of Attorney portion of this document to make decisions related to drug trials.

☒ I do not consent to participation in any drug trials.

6. Additional instructions or information.

Examples of other instructions or information that may be included:

Activities that help or worsen symptoms:

Calm instrumental music and dim lighting help me settle.

Type of intervention preferred in the event of a crisis:

What helps: quiet, being allowed to walk, calling my brother David. Warning signs of becoming unwell: not sleeping for two or more nights, very rapid speech, impulsive spending. Please give me space rather than physical restraint. Restraint escalates my panic.

Mental and physical health history:

Diagnoses: Bipolar I disorder, Generalized anxiety disorder. Allergies: Penicillin (reaction: anaphylaxis — throat swelling, severity: SEVERE).

Family notification:

Please notify my agent (David) as soon as I am admitted. Emergency contact: David Whitfield (brother), (717) 555-0199.

Temporary care and custody of pets:

I have a cat, Juniper, who needs feeding — please tell David so he can care for her.

Other matters of importance:

Electroconvulsive Therapy (ECT): Refuses ECT and does not consent to it under any circumstances. Experimental treatments: No experimental or investigational treatments without the express consent of my agent. Room preferences: Prefers a private room, or a female roommate if sharing is required. Visitor restrictions: Does not wish to be visited by former partner, Greg Lawson.

Part III. Mental Health Care Power of Attorney

I, Margaret Eleanor Whitfield, having the capacity to make mental health decisions, authorize my designated health care agent to make certain decisions on my behalf regarding my mental health care. If I have not expressed a choice in this document or in the accompanying Declaration, I authorize my agent to make the decision that my agent determines is the decision I would make if I were competent to do so.

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A. Designation of agent

I hereby designate and appoint the following person as my agent to make mental health care decisions for me as authorized in this document. This authorization applies only to mental health decisions that are not addressed in the accompanying signed Declaration.

Name of designated person

Address

City, State, Zip Code

Phone Number

Agent's acceptance:

I hereby accept designation as mental health care agent for Margaret Eleanor Whitfield.

Agent's Signature

B. Designation of alternative agent

In the event that my first agent is unavailable or unable to serve as my mental health care agent, I hereby designate and appoint the following individual as my alternative mental health care agent to make mental health care decisions for me as authorized in this document:

Name of designated person

Address

City, State, Zip Code

Phone Number

Alternative Agent's acceptance:

I hereby accept designation as alternative mental health care agent for Margaret Eleanor Whitfield.

Alternate Agent's Signature

C. Authority granted to my mental health care agent

I hereby grant to my agent full power and authority to make mental health care decisions for me consistent with the instructions and limitations set forth in this document. If I have not expressed a choice in this Power of Attorney, or in the accompanying Declaration, I authorize my agent to make the decision that my agent determines is the decision I would make if I were competent to do so.

Preferences regarding hospitalization.

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- ☒ My agent is authorized to consent to my voluntary admission to a treatment facility for mental health care.
- ☐ My agent is not authorized to consent to my voluntary admission to a treatment facility for mental health care.

1. Preferences regarding medications for psychiatric treatment.

- ☒ My agent is authorized to consent to the use of any medications after consultation with my treating psychiatrist and any other persons my agent considers appropriate.
- ☐ My agent is not authorized to consent to the use of any medications.

2. Preferences regarding electroconvulsive therapy (ECT).

- ☐ My agent is authorized to consent to the administration of electroconvulsive therapy.
- ☒ My agent is not authorized to consent to the administration of electroconvulsive therapy.

3. Preferences for experimental studies.

- ☐ My agent is authorized to consent to my participation in experimental studies if, after consultation with my treating physician and any other individuals my agent deems appropriate, my agent believes that the potential benefits to me outweigh the possible risks to me.
- ☒ My agent is not authorized to consent to my participation in experimental studies.

4. Preferences regarding drug trials.

- ☐ My agent is authorized to consent to my participation in drug trials if, after consultation with my treating physician and any other individuals my agent deems appropriate, my agent believes that the potential benefits to me outweigh the possible risks to me.
- ☒ My agent is not authorized to consent to my participation in drug trials.

PART IV. Nominating a Guardian

A. Preference as to a court-appointed guardian

I understand that I may nominate a guardian of my person for consideration by the court if incapacity proceedings are commenced under 20 Pa.C.S. § 5511. I understand that the court will appoint a guardian in accordance with my most recent nomination except for good cause or disqualification. In the event a court decides to appoint a guardian, I desire the following person to be appointed:

Name of Person

Address

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City, State, Zip Code

Phone Number

- ☒ The appointment of a guardian of my person will not give the guardian the power to revoke, suspend or terminate this Combined Mental Health Care Declaration and Power of Attorney.
- ☐ Upon appointment of a guardian, I authorize the guardian to revoke, suspend or terminate this Combined Mental Health Care Declaration and Power of Attorney.

PART V. Execution

I am making this Combined Mental Health Care Declaration and Power of Attorney on the 20 day of June, 2026.

My Signature

Name

Margaret Eleanor Whitfield

My Name

Margaret Eleanor Whitfield

Address

PA

Phone Number

(717) 555-0182

Witness Signatures:

Witness Signature

Witness Signature

Name of Witness

Address

Phone Number

Date Signed

Name of Witness

Address

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Phone Number

Date Signed

If the principal making this Combined Mental Health Care Declaration and Power of Attorney is unable to sign this document, another individual may sign on behalf of and at the direction of the principal. An agent or a person signing on behalf of the principal may not also be a witness.

Signature of person signing on my behalf

Name of Person

Address

City, State, Zip Code

Phone Number
